FOURTH AMENDMENT

TO

GROUND LEASE

FOR

REAL ESTATE PARCEL EC-2C

BETWEEN

PARCEL EC-2C LLC, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee

DATED AS OF: April 1, 2020
FOURTH AMENDMENT TO GROUND LEASE

This FOURTH AMENDMENT TO GROUND LEASE (this "Fourth Amendment") is made effective as of April 1, 2020 ("Effective Date") by and between **PARCEL EC-2C LLC**, an Illinois limited liability company ("Lessor"), successor lessor to CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under a Trust Agreement dated as of December 1, 2007 and known as Trust No. 1114334 ("Original Lessor"), and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee").

RECITALS

A. Original Lessor and Lessee entered into that certain Ground Lease dated as of December 1, 2007 ("Original Ground Lease"), a Short Form and Memorandum of which was recorded on January 31, 2008 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 0803133011, and pursuant to which Lessee leased from Lessor the premises legally described on Exhibit A to the Original Ground Lease, being the same premises legally described on Exhibit A attached hereto.

B. The Original Ground Lease was amended by that certain First Amendment to Ground Lease dated as of February 5, 2010 ("First Amendment"), by that certain Second Amendment to Ground Lease dated as of September 1, 2012 ("Second Amendment"), and by that certain Third Amendment to Ground Lease dated as of December 22, 2015 ("Third Amendment"); said Original Ground Lease as amended by the First Amendment, the Second Amendment, and the Third Amendment, being herein referred to as the "Current Ground Lease"). The First Amendment provided (at the request of Lessee) certain relief from the full Base Rent required by the Original Ground Lease due to construction defects and construction cost overruns related to the development of the Project leading to higher than anticipated costs and lower than anticipated revenues for the Project. The Second Amendment provided (at the request of Lessee) certain additional relief in the form of a deferral of the Full Base Rent

required to be paid under the Original Ground Lease, as amended by the First Amendment, on account of unexpectedly high prior year real estate taxes and ongoing operating expenses. The Third Amendment modified the Permitted Use for the Premises.

C. Lessee has again requested additional relief in the form of an extended deferral of certain amounts of Base Rent required to be paid under the Current Ground Lease, a portion of which is a direct result of the cancellation (or shortened) Spring 2020 youth hockey league due to the COVID-19 pandemic, and Lessor has agreed to grant certain temporary additional relief to Lessee on the conditions set forth in this Fourth Amendment.

Accordingly, in consideration of their mutual agreements set forth herein, Lessor and Lessee hereby agree as follows:

1. **Defined Terms.** All capitalized terms used but not defined in this Fourth Amendment shall have the same meanings as in the Current Ground Lease, unless otherwise expressly provided in this Fourth Amendment. In addition, from and after the date hereof, the

term "Ground Lease" as used in the Current Ground Lease and this Fourth Amendment shall mean and include the Current Ground Lease, as amended by this Fourth Amendment.

2. **Amendment of Section 3.1.1 of Ground Lease.** Effective as of the Effective Date, Section 3.1.1 of the Current Ground Lease is hereby deleted in its entirety and replaced with the following:

3.1.1 Initial Base Rent; Base Rent.

(a) Schedule of Base Rent. Commencing as of the Commencement Date through and including the earlier of the date that the Project has been Substantially Completed and the Hockey Clubs are using the Project or September 1, 2008 ("**Construction Period**"), Lessee shall pay monthly, in advance, initial base ground rent in an amount equal to Two Thousand Eighty Three and 33/100 Dollars ($2,083.33) ("**Initial Base Rent**"). The monthly Initial Base Rent amount shall be prorated for partial months between the Commencement Date and end of the Construction Period. Commencing as of the next day following the end of the Construction Period ("**Base Rent Commencement Date**"), Lessee shall pay Base Rent, on a monthly basis, in advance, on the first day of each and every month in the applicable amounts set forth in the following Schedule of Base Rent. Beginning on the Base Rent Commencement Date, Base Rent shall be payable at a rate of Sixteen Thousand Six Hundred Sixty-Six and 67/100 Dollars ($16,666.67) per month. The monthly Base Rent amount shall be prorated for partial months between the Base Rent Commencement Date and the beginning of the first Lease Year.

Schedule of Base Rent

Lease Year	Annual Base Rent	Monthly Payment
1 (9/1/08-8/31/09)	$ 200,000.04	$ 16,666.67
2 (9/1/09-8/31/10)	$ 90,000.04 -	
		(9/1/09 – 10/31/09) - $ 16,666.67
		(11/1/09 – 12/31/09) - $ 1,666.67
		(1/1/10 – 8/31/10) - $ 6,666.67
3 (9/1/10-8/31/11)	$ 80,000.04	$ 6,666.67
4 (9/1/11-8/31/12)	$ 80,000.04	$ 6,666.67

5 (9/1/12-8/31/13) $ 31,999.92 $ 2,666.66
6 (9/1/13-8/31/14) $ 90,000.00 $ 7,500.00
7 (9/1/14-8/31/15) $ 124,000.08 $ 10,333.34
8 (9/1/15-8/31/16) $ 154,000.08 $ 12,833.34
9 (9/1/16-8/31/17) $ 186,000.00 $ 15,500.00
10 (9/1/17-8/31/18) $ 218,000.04 $ 18,166.67
11 (9/1/18-8/31/19) $ 251,000.04 $ 20,916.67
12 (9/1/19-8/31/20) $ 286,000.08 $ 23,833.34
13 (9/1/20-8/31/21) $ 300,999.96 $ 25,083.33
14 (9/1/21-8/31/22) $ 343,767.12 $ 28,647.26
15 (9/1/22-8/31/23) $ 359,333.04 $ 29,944.42
16 (9/1/23-8/31/24) $ 369,500.04 $ 30,791.67

Lease Year Annual Base Rent Monthly Payment

17 (9/1/24-8/31/25) $ 380,000.04 $ 31,666.67
18 (9/1/25-8/31/26) $ 387,500.04 $ 32,291.67
19 (9/1/26-8/31/27) $ 402,999.96 $ 33,583.33
20 (9/1/27-8/31/28) $ 408,000.00 $ 34,000.00 21 (9/1/28-8/31/29) $ 414,999.96 $ 34,583.33 22 (9/1/29-8/31/30) $ 435,000.00 $ 36,250.00 23 (9/1/30-8/31/31) $ 450,893.04 $ 37,574.42 24 (9/1/31-8/31/32) $ 408,657.36 $ 34,054.78 25 (9/1/32-8/31/33) $ 440,000.40 $ 36,666.70 26 (9/1/33-8/31/34) $ 468,744.72 $ 39,062.06 27 (9/1/34-8/31/35) $ 463,653.72 $ 38,637.81
28 (9/1/35-8/31/36) $ 499,999.68 $ 41,666.64 29 (9/1/36-8/31/37) $ 499,999.68 $ 41,666.64 30 (9/1/37-8/31/38) $ 481,278.98 $ 40,106.00 31 (9/1/38-8/31/39) $ 470,112.24 $ 39,176.02 32 (9/1/39-8/31/40) $ 470,112.24 $ 39,176.02

(b) Partial Abatement of Base Rent. Notwithstanding the provisions of Section 3.1.1(a), Lessee shall be entitled to an abatement of Base Rent in an amount that equals a total of One Hundred Thousand and 08/100 Dollars ($100,000.08) against the monthly installments of Base Rent paid during the Term commencing as of the Base Rent Commencement Date as an accommodation by Lessor with respect to the anticipated additional costs Lessee will incur to remediate the known soil conditions on Parcel EC 2C. The foregoing abatement shall be earned on a monthly basis by Lessee beginning as of the first day of the calendar month following Substantial Completion of the Initial Project, and Lessee shall, subject to the last sentence of this paragraph, be entitled to deduct from the monthly payments of Base Rent set forth in the Schedule of Base Rent the appropriate amount set forth in the following table:

Months Monthly Abatement Total Annual Abatement

9/1/08-8/31/09 $ 1,666.67 $ 20,000.04 9/1/09-8/31/10 $ 1,666.67 $ 20,000.04 9/1/10-8/31/11 $ 1,666.67 $ 20,000.04 9/1/11-8/31/12 $ 1,666.67 $ 20,000.04 9/1/12-8/31/13 $ 1,666.66 $ 19,999.92 Total All Abatements $ 100,000.08

In no event shall Lessee be entitled to any abatement under this Section 3.1.1(b) if a Default exists under this Lease at any time such abatement is due and in no event shall Lessee be entitled to any abatement in excess of the total abatement set forth above, regardless of whether the costs to remediate any soil conditions exceed the amount of the abatement or Lessee incurs other additional unanticipated costs in connection with the construction of the Initial Project or for any other reason.

(c) Additional Partial Abatement of Base Rent on Account of COVID-19 Pandemic. Notwithstanding the provisions of Section 3.1.1(a) and Section 3.1(b), Lessee shall be entitled to an additional abatement of Base Rent in an amount that equals a total of Seventy-One Thousand Five Hundred and 02/100 Dollars ($71,500.02) against the monthly installments of Base Rent paid during the Term commencing as of the monthly Base Rent payment due April 1, 2020 and continuing through the monthly Base Rent Payment due June 1, 2020 as an accommodation by Lessor with respect to the anticipated reduced revenue Lessee expects to receive as a direct result of the cancellation (or shortened) Spring 2020 youth hockey league due to the COVID-19 pandemic ("COVID 19 Abatements"). Lessee shall be entitled to deduct from the monthly payments of Base Rent set forth in the Schedule of Base Rent the following amounts of COVID-19 Abatements as are set forth in the following table:

Months	**COVID-19 Abatements**
April 2020	$ 23,833.34
May 2020	$ 23,833.34
June 2020	$ 23,833.34
Total All COVID-19 Abatements	$ 71,500.02

In no event shall Lessee be entitled to any COVID-19 Abatements under this Section 3.1.1(c) if a Default exists under this Lease at any time such abatement is due and in no event shall Lessee be entitled to any abatement in excess of the total COVID-19 Abatements set forth above, regardless of whether the COVID-19 pandemic extends beyond June 30, 2020 or Lessee incurs other additional unanticipated costs or reduced revenues for any other reason.

(d) Base Rent Beginning with Rent Adjustment Date. Base Rent for the remainder of the Initial Term beginning with the Rent Adjustment Date shall be determined in accordance with Sections 3.1.2, 3.1.3 and 3.1.4 below.

3. **Interest on Deferred Portion of Base Rent.** In addition to the monthly payments of Base Rent set forth in Section 3.1.1(a) of the Ground Lease (as set forth in this Fourth Amendment), from and after September 1, 2020, and as Additional Rent under the Ground Lease, Lessee shall pay interest on the cumulative amount of the deferred portion of the Base Rent (meaning the cumulative difference between the Base Rent that would have been payable under Section 3.1.1 of the Original Ground Lease, as amended by the Second Amendment, and the Base Rent payable under Section 3.1.1 of the Ground Lease (as set forth in Section 2 of this Fourth Amendment) in accordance with the table set forth below.

Schedule of Interest on Deferred Base Rent

Lease Year	**Annual Interest Payment**	**Monthly Interest Payment**
12 (7/1/20-8/31/20)[1]	$ 178.76	$ 89.38

[1] Note: Interest for three months on deferred Base Rent is paid for only two months during Lease Year 12.

Lease Year	Annual Interest Payment	Monthly Interest Payment
13 (9/1/20-8/31/21)	$ 915.00	$ 76.25
14 (9/1/21-8/31/22)	$ 1,057.32	$ 88.11
15 (9/1/22-8/31/23)	$ 1,424.04	$ 118.67
16 (9/1/23-8/31/24)	$ 2,079.00	$ 173.25
17 (9/1/24-8/31/25)	$ 2,628.96	$ 219.08
18 (9/1/25-8/31/26)	$ 3,254.04	$ 271.17
19 (9/1/26-8/31/27)	$ 3,723.96	$ 310.33
20 (9/1/27-8/31/28)	$ 4,143.96	$ 345.33
21 (9/1/28-8/31/29)	$ 4,494.00	$ 374.50
22 (9/1/29-8/31/30)	$ 4,644.00	$ 387.00
23 (9/1/30-8/31/31)	$ 4,988.64	$ 415.72
24 (9/1/31-8/31/32)	$ 4,475.16	$ 372.93
25 (9/1/32-8/31/33)	$ 3,648.12	$ 304.01
26 (9/1/33-8/31/34)	$ 3,058.44	$ 254.87
27 (9/1/34-8/31/35)	$ 2,519.52	$ 209.96
28 (9/1/35-8/31/36)	$ 1,617.24	$ 134.77
29 (9/1/36-8/31/37)	$ 714.96	$ 59.58

Notwithstanding the foregoing, if Lessee actually pays the full amount of any Catch-Up Payment (as such term is defined in Section 4 of this Fourth Amendment) for any of Lease Year 29 through Lease Year 24 (which are to be paid in reverse order as provided in Section 3(a) below), then so long as no Default has occurred under the Ground Lease, Lessee shall be relieved of the obligation to pay Additional Rent due on account of interest on Deferred Base Rent from the first day of the Lease Year following the Lease Year for which such Catch-Up Payment is made, meaning (for example) if Lessee makes a Catch-Up Payment or payments totaling $71,500.42 prior to September 1, 2036, then Lessee need not pay the interest that would otherwise be due during Lease Year 29, and if Lessee makes a total of a Catch-Up Payment or Catch-Up Payments totaling $71,500.41 plus $90,228.12 prior to September 1, 2035, then Lessee need not pay the interest that would otherwise be due during Lease Years 29 and 28.

4. **Amendments to Section 3 of Second Amendment.** Section 3 of the Second Amendment is hereby amended and restated to read as follows:

3. **Additional Base Rent Payments Required Where Cash Flow Exceeds Certain Amounts.**

(a) Catch-Up Payments. Notwithstanding anything contained in Section 3.1.1 of the Ground Lease, if (i) Lessee receives revenues from a shortened Spring 2020 youth hockey league, Lessee shall promptly pay to Lessor such portion of the revenues from the Spring 2020 youth hockey league as Lessee receives up to the total of the COVID-19 Abatements or shall not be entitled to deduct any further monthly amounts of COVID-19 Abatements after the Spring 2020 youth hockey league payments have been received by Lessee, or (ii) during any fiscal year of Lessee that ends at any time prior to September 1, 2037 (i.e., prior to the commencement of Lease Year 30 (9/1/37-8/31/38)), the "Cash Available after Debt Service" as set forth in an Actual Cash Flow Statement for such

fiscal year exceeds $50,000.00, the Actual Cash Flow Statement provided to Lessor shall be accompanied by a payment of additional Base Rent in an amount equal to the Cash Available after Debt Service less $50,000.00 (any payment made or required to be made pursuant to clause (i) or (ii) above, a "Catch-Up Payment"). Each Catch-Up Payment (including any amount not abated on account of the commencement of the Spring 2020 youth hockey league) shall be credited by Lessor as a prepayment of the deferred portion of the Base Rent payable in Lease Year 30 until the total prepayments of deferred Base Rent for Lease Year 30 equal $71,500.42. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of the Base Rent payable in Lease Year 29 until the total prepayments of deferred Base Rent for Lease Year 29 equal $90,228.12. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of Base Rent payable in Lease Year 28 until the total Catch-Up Payments of deferred Base Rent for Lease Year 28 equal $90,228.12. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of Base Rent payable in Lease Year 27 until the total Catch-Up Payments of deferred Base Rent for Lease Year 27 equal $53,882.12. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of the Base Rent payable in Lease Year 26 until the total Catch-Up Payments of deferred Base Rent for Lease Year 26 equal $58,973.12. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of the Base Rent payable in Lease Year 25 until the total Catch-Up Payments of deferred Base Rent for Lease Year 25 equal $82,699.12. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the deferred portion of the Base Rent payable in Lease Year 24 until the total Catch-Up Payments of deferred Base Rent for Lease Year 24 equal $51,356.00. Such obligation to make Catch-Up Payments shall continue only until such time as the total of all Catch-Up Payments equals the cumulative amount of deferred Base Rent represented by the Schedule of Base Rent set forth in Section 3.1.1(a) of the Ground Lease, which is equal to $498,867.02 ($71,500.42 + $90,228.12 + $90,228.12 + $53,882.12 + $58,973.12 + $82,699.12 + $51,356.00) ("Catch-Up Point").

(b) Request for Relief from Obligation to Make a Catch-Up Payment. So long as Lessee is not in Default under the Ground Lease at the time any Catch-Up Payment would otherwise be due, if Lessee believes, after calculation of the amount of any Catch-Up Payment, that Lessee has a need for all or any portion of the Catch-Up Payment that would otherwise be due to Lessor in order to fund any major repairs or capital improvements to the Project that cannot be paid for using amounts then on deposit in the Building Repair Reserve Fund (a/k/a Repair and Replacement Fund) and other cash on hand then held by Lessee, as evidenced by the most recent updated Capital Repair and Replacement Budget (hereinafter defined) provided to Lessor and Lessee's then current balance sheet (which Lessee shall update if necessary to the end of such fiscal year), then Lessee shall have the right to request in writing (i) a waiver of the obligation to make all or any portion the Catch-Up Payment that would otherwise be due, which written request

shall include an explanation of the proposed major repairs or capital improvements for which Lessee proposes such Catch-Up Payment be used, and (ii) a meeting with a designated representative of Lessor's Beneficiary to explain such proposed uses and the documentation provided to Lessor. Lessor's Beneficiary shall grant the request for a

meeting and following such meeting Lessor's Beneficiary shall take such request under advisement and within thirty (30) days shall determine whether to grant the request of Lessee to withhold all or any portion of the Catch-Up Payment to be used for the purposes set forth in the written request. If such request is granted, the Catch-Up Payment (or portion thereof) shall be used by Lessee strictly for the purposes set forth in the written request and Lessee shall provide a follow-up report to Lessor upon completion of such repairs or capital improvements to the Project demonstrating to Lessor's reasonable satisfaction that Lessee has complied with such request. If such request is denied, such determination shall be final and Lessee shall make the Catch-Up Payment.

5. **Amendments to Additional Requirements to Be Met by Lessee.** Section 4 of the Second Amendment is amended as follows:

(a) Date on Which Additional Requirements Expire. The date "September 1, 2031" in the fourth line of Section 4 of the Second Amendment is changed to read "September 1, 2038."

(b) Amendment to Section 4(a) of the Second Amendment. The words "Make-Up Payments" in the last line of Section 4(a) of the Second Amendment is hereby changed to "Catch-Up Payments." In addition, Lessee has provided to Lessor new Cash Flow Projections for Lessee's Fiscal 2020 through Fiscal 2039 that are attached to this Fourth Amendment as Exhibit B ("Updated Cash Flow Projections"). The Updated Cash Flow Projections were prepared prior to and do not reflect the anticipated reduction in cash flow due to the direct result of the cancellation (or shortened) Spring 2020 youth hockey league due to the COVID-19 pandemic.

(c) Amendment to Section 4(d) of the Second Amendment. The last sentence of Section 4(d) of the Second Amendment is amended to read as follows:

> No later than May 31, 2023, if Lessee has not yet reached the Catch-Up Point, Lessee shall provide evidence to Lessor that WHA and WHC have each entered into new contracts having a term expiring no earlier than the end of Lease Year 32 (9/1/39-8/31/40) with Annual Contract Amounts payable during Fiscal 2039 for both WHA and WHC combined that together with other then projected Contract Ice Sales from other parties are sufficient for the Contract Ice Sales projected revenues set forth in the Updated Cash Flow Projections for Fiscal Years 2024 through 2039 to be met.

6. **WHA and WHC Guaranty.** WHA and WHC shall remain obligated under terms and provisions of the Guaranty of Payment and Performance of Ground Lease Obligations executed by WHA and WHC as of the date of the Second Amendment and delivered to Lessor concurrently with the Second Amendment ("Existing Guaranty"), except as amended as provided in this Fourth Amendment. In order to confirm WHA's and WHC's obligations under the Existing Guaranty extend to the Ground Lease Obligations, as amended by this Fourth Amendment, WHA and WHC shall execute and deliver the Joinder to this Fourth Amendment.

As provided in the Second Amendment, each guarantor shall be liable for only fifty percent (50%) of any obligation under the Existing Guaranty (as amended by said Joinder) and shall not be jointly or severally liable thereunder, but Lessee understands and agrees that if and to the extent the failure by WHA and WHC to fund the full amount of any such obligation results in a failure by Lessee to cure any Default under the Ground Lease, such Default may become an Event of Default, upon which Lessor shall be entitled to exercise its rights and remedies provided for in the Ground Lease on account of such Event of Default.

7. **Addresses and Addressees for Notices to Lessor and Lessee.** The addresses and addressees for notices to Lessor and Lessee set forth in Section 24.1 of the Original Lease are hereby amended to read as follows:

For notices and communications to Lessor:

if sent by personal service or by courier service:

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
1985 Waukegan Road
Northbrook, Illinois 60062
Attention: President

or to (if by mail):

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
P.O. Box 6038
Techny, Illinois 60062-6038
Attention: President

in either case, with a copy to:

Schiff Hardin LLP
233 South Wacker Drive, Suite 7100
Chicago, Illinois 60606
Attention: Janet M. Johnson or David A. Sattelberger

For notices and communications to Lessee:

North Shore Ice Arena, LLC
211 Founders Drive
Northbrook, Illinois 60062
Attention: President

with a copy to:

Club-Sports Consulting Group
3701 Pin Oak Court
Lisle, Illinois 60532
Attention: Don Lapato

8. **Reaffirmation and Confirmation of Ground Lease.** All of the terms, conditions, agreements, obligations and provisions set forth in the Current Ground Lease as amended, modified and supplemented by this Fourth Amendment shall be and they hereby are reaffirmed, ratified and confirmed in their entirety and incorporated herein by reference as if fully set forth herein.

9. **Governing Law.** This Fourth Amendment shall be governed by the laws of the State of Illinois, as may be amended from time to time, without giving effect to any choice or conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than the State of Illinois.

10. **No Further Amendments.** Except as otherwise provided in this Fourth Amendment, in all other respects the Current Ground Lease shall remain unchanged and in full force and effect.

11. **Executed Counterparts.** This Fourth Amendment may be executed in one or more counterparts, each of which shall constitute an original, but all of which, when taken together shall constitute only one legal instrument. This Fourth Amendment shall become effective when copies hereof (when taken together) shall bear the signatures of both parties hereto.

[Signatures on following pages]

Joinder to Fourth Amendment to Ground Lease

Wilmette Hockey Association, Inc. ("WHA"), an Illinois not-for-profit corporation, and Winnetka Hockey Club, Inc. ("WHC"), an Illinois not-for-profit corporation, have executed this Joinder to Fourth Amendment to Ground Lease ("Joinder") as of the date set forth below their signatures for the following purposes and for the purpose of acknowledging that the Existing Guaranty remains in full force and effect and is binding on WHA and WHC, except that WHA and WHC acknowledge and agree that the Existing Guaranty is hereby amended as follows:

1. Notwithstanding anything contained in the Existing Guaranty, WHA and WHC hereby consent to the execution and delivery of the Fourth Amendment by Lessee to which this Joinder is attached and acknowledge and agree that the enforceability of the Existing Guaranty (as amended as provided in this Joinder) shall not be terminated or otherwise

affected by the Fourth Amendment.

2. As used in the Existing Guaranty, the term (a) "Lease" shall mean the Lease (as defined in the Existing Guaranty) as amended by the Fourth Amendment; (b) "Lessee's Obligations" (as defined in paragraph 2(a) of the Existing Guaranty) shall mean and include the following:

(i) the full and prompt performance, completion and observance by Lessee of each and all of the covenants and agreements required to be performed, completed and observed by Lessee under the terms and provisions of the Lease that are due to be performed, completed or observed, until such time as the first to occur of (1) the date on which Lessee has reached the Catch Up Point (as defined in Section 3 of the Second Amendment, as amended by Section 4 of the Fourth Amendment), and (2) September 1, 2038, provided Lessee is not then in Default under the Lease, including without limitation the applicable provisions of Section 4 of the Second Amendment as amended by Section 4 of the Fourth Amendment, related to Lessee's annual financial reporting obligations, contractual commitments for ice time, and the restriction on removal of the manager of the ice hockey facility; and

(ii) the full and complete payment of all Rent and other money obligations of Lessee to Lessor under or pursuant to any provisions of the Lease that are due and payable until such time as all Catch-Up Payments (as defined in Section 3 of the Second Amendment, as amended by Section 4 of the Fourth Amendment) have been paid and the Catch-Up Point has been reached, provided Lessee is not then in Default under the Lease;

and (c) "Obligations" (as defined in paragraph 2(e) of the Existing Guaranty) shall include without limitation those set forth in paragraphs 2(a), 2(b) and 2(d) of the Existing Guaranty as amended by this Joinder.

3. WHA and WHC hereby represent and warrant that all of the representations and warranties made severally by each of WHA and WHC in the Existing Guaranty are

hereby remade as of the respective date this Joinder is executed by WHA and WHC as set forth below their signatures, remain true and correct as of the date of the respective date this Joinder is so executed and there are no changes or modifications thereto.

4. The addresses and addressees for notices to Lessor set forth in paragraph 8 of the Existing Guaranty are hereby amended to read as follows:

For notices and communications to Lessor:

if sent by personal service or by courier service:

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
1985 Waukegan Road
Northbrook, Illinois 60062
Attention: President

or to (if by mail):

Parcel EC-2C LLC

c/o Techny Land Corporation NFP
P.O. Box 6038
Techny, Illinois 60062-6038
Attention: President

in either case, with a copy to:

Schiff Hardin LLP
233 South Wacker Drive, Suite 7100
Chicago, Illinois 60606
Attention: Janet M. Johnson or David A. Sattelberger

For notices and communications to Guarantor:

Wilmette Hockey Association, Inc.
2111 Founders Drive
Northbrook, Illinois 60602
Attention: President

and to:

Winnetka Hockey Club, Inc.
2111 Founders Drive
Northbrook, Illinois 60062
Attention: President

ACKNOWLEDGMENTS

STATE OF ILLINOIS)
) SS
COUNTY OF COOK)

Execution of this Fourth Amendment and Joinder was acknowledged before m
on July 1st, 2020 by MICHAEL D. McGREAL an
Robert Schelp as the President and Treasurer, respectively, o
Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, for and on behalf o
said corporation, both individually and as one of the members of **NORTH SHORE IC**
ARENA, LLC, an Illinois limited liability company.

Valdemaras Raizys
Notary Public

My Commission expires: 5/2/23

VALDEMARAS RAIZYS
Official Seal
Notary Public - State of Illinois
My Commission Expires May 2, 2023

STATE OF ILLINOIS)
) SS
COUNTY OF COOK)

Execution of this Fourth Amendment and Joinder was acknowledged before me
on June 25, 2020 by DOUGLAS SHAFSTEIN and
ERIC MAVEON as the CO-PRESIDENT and NSIA BOARD respectively, of
Winnetka Hockey Club, Inc., an Illinois not-for-profit corporation, for and on behalf of said
corporation, but individually and as one of the members of **NORTH SHORE ICE ARENA,**
LLC, an Illinois limited liability company.

Ivette M. Martinez
Notary Public

My Commission expires: 3/20/21

IVETTE M MARTINEZ
Official Seal
Notary Public – State of Illinois
My Commission Expires Mar 20, 2021

LEASEHOLD MORTGAGEE CONSENT TO
FOURTH AMENDMENT TO GROUND LEASE

The undersigned, **UMB BANK, N.A.** ("UMB"), as successor trustee to Amalgamated Bank of Chicago, as trustee ("Amalgamated"), pursuant to that certain Assignment of Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing, effective as of April 24, 2020, recorded on June 24, 2020 as Document Number 2017620217 in the official Records of Cook County, Illinois, and as mortgagee under that certain Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing made by **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee") for the benefit of Amalgamated ("Leasehold Mortgage"), recorded on January 31, 2008 as Document Number 0803133012 in the Official Records of Cook County, Illinois, as may be amended, which encumbers the leasehold estate of Lessee, in Techny Parcel EC-2C legally described on Exhibit A attached hereto, created under and pursuant to that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007, by and between Lessee and Chicago Title Land Trust Company, not personally but as Trustee under a Trust Agreement dated December 1, 2007 and known as Trust No. 1114334 ("Original Lessor"), a Short Form and Memorandum of which was recorded on January 31, 2008 as Document No. 0803133011 in the Official Records of Cook County, Illinois, as such Ground Lease has heretofore been amended by that certain (i) First Amendment to Ground Lease dated as of February 5, 2010 between Original Lessor and Lessee ("First Amendment"), (ii) that certain Second Amendment to Ground Lease between Original Lessor and Lessee dated as of September 1, 2012 ("Second Amendment"), and (iii) that certain Third Amendment to Ground Lease between Parcel EC-2C LLC ("Lessor") and Lessee, hereby consents to that certain Fourth Amendment to Ground Lease between Lessor and Lessee to which this Consent is attached, and Amalgamated hereby subordinates the lien of the Leasehold Mortgage to the terms and provisions contained in the Ground Lease, meaning the Current Ground Lease as amended by the Fourth Amendment.

Further, UMB hereby gives notice to Lessor that from and after the date of the Fourth Amendment, all notices and communications to UMB, as successor Trustee and Mortgagee under the Leasehold Mortgage should be provided in writing and deemed delivered to UMB (x) when actually delivered at the address set forth below, or (y) one (1) Day after deposit with a reputable overnight courier service providing delivery receipts, delivery charges prepaid, or (z) three (3) Days after deposit thereof in any main or branch United States post office certified or registered mail, postage prepaid, return receipt requested, in each case, properly addressed to UMB as follows:

UMB Bank, N.A.
120 South Sixth Street, #1400
Minneapolis, MN 55402
Attn: Lorna Gleason, Senior Vice President, Special Accounts

By notice complying with the foregoing requirements, UMB shall have the right to change the address or addressee, or both, for all future notices and communications to such party, but no such notice of a change of addressee or address, or both, by notice given hereunder shall be effective until actually received by Lessor.

Notices by UMB to Lessor shall be given in the manner provided in Section 7 of the Fourth Amendment to either of the addressees or addresses for notices to Lessor provided in Section 7 of the Fourth Amendment.

All capitalized terms used but not defined in this Consent shall have the meanings ascribed to them in the Ground Lease.

UMB BANK, N.A.

By:_____

Lorna Gleason, Senior Vice President, Special Accounts

ACKNOWLEDGMENT

STATE OF Minnesota)
) SS
COUNTY OF Hennepin)

This instrument was acknowledged before me on Oct 27th, 2020, by Lorna Gleason, as the Senior Vice President, Special Accounts of **UMB BANK, N.A.**, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such Senior Vice President, Special Accounts.

Notary Public

My commission expires:

01/31/2025

JUSTIN G MILLER
NOTARY PUBLIC - MINNESOTA
My Commission Expires Jan. 31, 2025

Exhibit A
Legal Description

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC 2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN: 04-14-305-005-0000

Address: 2111 Founders Drive, Northbrook, Illinois 60062.

Exhibit B
Updated Cash Flow Projections

Projection 2021 - 2027

	Fiscal 2020	Fiscal 2021	Fiscal 2022	Fiscal 2023	Fiscal 2024	Fiscal 2025	Fiscal 2026	Fiscal 2027
REVENUE								
Contract Ice Sales 2%	$1,387,271	$1,415,016	$1,443,317	$1,472,183	$1,501,627	$1,531,659	$1,562,292	$1,593,538
Tournaments 2% keep for 3 years	$65,136	$72,226	$72,226	$72,226	$73,671	$73,671	$73,671	$75,144
Adult Hockey .5%	$99,600	$100,098	$100,598	$101,101	$101,607	$102,115	$102,626	$103,139
Public Programs and Ice Sales 1.5%	$332,600	$337,589	$342,653	$347,793	$353,010	$358,305	$363,679	$369,134
Other Building Revenue .5%	$3,000	$3,015	$3,030	$3,045	$3,060	$3,076	$3,091	$3,107
Lease Income .5%	$51,000	$51,255	$51,511	$51,769	$52,028	$52,288	$52,549	$52,812
TOTAL REVENUE	**$1,938,607**	**$1,979,199**	**$2,013,335**	**$2,048,117**	**$2,085,002**	**$2,121,113**	**$2,157,908**	**$2,196,874**
EXPENSES								
Payroll								
Office 3%	$91,200	$93,936	$96,754	$99,657	$102,646	$105,726	$108,898	$112,164
Operations 3%	$168,000	$173,040	$178,231	$183,578	$189,085	$194,758	$200,601	$206,619
Adult Hockey Programs .5%	$22,560	$22,673	$22,786	$22,900	$23,015	$23,130	$23,245	$23,362
Total Payroll	$281,760	$289,649	$297,771	$306,135	$314,746	$323,614	$332,744	$342,145
Other								
Office 1.5%	$63,440	$64,392	$65,357	$66,338	$67,333	$68,343	$69,368	$70,409
Operations 1.5%	$343,952	$349,111	$354,348	$359,663	$365,058	$370,534	$376,092	$381,733
Tournaments 1.5%	$4,250	$4,314	$4,378	$4,444	$4,511	$4,578	$4,647	$4,717
Adult Hockey Programs 1%	$24,000	$24,360	$24,725	$25,096	$25,473	$25,855	$26,243	$26,636
Insurance 1.5%	$41,854	$42,482	$43,119	$43,766	$44,422	$45,089	$45,765	$46,451
Management Fee 1.5%	$42,000	$42,630	$43,269	$43,918	$44,577	$45,246	$45,925	$46,613
Property Taxes 3.5%	$202,652	$209,745	$217,086	$224,684	$232,548	$240,687	$249,111	$257,830
TOTAL EXPENSES	**$1,003,908**	**$1,026,682**	**$1,050,065**	**$1,074,045**	**$1,098,668**	**$1,123,945**	**$1,149,894**	**$1,176,535**
Net Operating Income	$934,699	$952,517	$963,280	$974,072	$986,333	$997,168	$1,008,014	$1,020,339
Land Lease	$280,167	315,167	351,833	389,867	428,500	435,000	447,500	450,000
Debt Service	$621,891	$656,672	$623,684	$621,084	$622,715	$618,578	$623,519	$617,538
Debt Service Reserve Fund								
Cash Available after Debt Services	**$32,641**	**($19,322)**	**($12,237)**	**($36,678)**	**($64,882)**	**($56,410)**	**($63,005)**	**($47,199)**
Cash Flow		**$13,320**	**$1,083**	**($35,596)**	**($100,477)**	**($156,887)**	**($219,892)**	**($267,090)**
Net Operating Income	$934,699	$952,517	$963,280	$974,072	$986,333	$997,168	$1,008,014	$1,020,339
Proposed Land Lease	$280,167	295,167	337,600	353,000	363,000	380,000	385,000	403,000
Interest Payment		200	342	709	1,364	1,914	2,539	3,009
Land Lease Payment Inc. Interest		295,367	337,942	353,709	364,364	381,914	387,539	406,009
Debt Service	$621,891	$656,672	$623,684	$621,084	$622,715	$618,578	$623,519	$617,538
Debt Service Reserve Fund								
Cash Available after Debt Services	**$32,641**	**$478**	**$1,654**	**($721)**	**($746)**	**($3,324)**	**($3,044)**	**($3,208)**
Cash Flow		**$33,119**	**$34,773**	**$34,052**	**$33,306**	**$29,983**	**$26,939**	**$23,731**
Land Lease Change	0	(20,000)	(14,233)	(36,667)	(65,500)	(55,000)	(62,500)	(47,000)

Projections 2028 - 2035

	Fiscal 2028	Fiscal 2029	Fiscal 2030	Fiscal 2031	Fiscal 2032	Fiscal 2033	Fiscal 2034	Fiscal 2035
REVENUE								
Contract Ice Sales	$1,625,409	$1,657,917	$1,691,075	$1,724,897	$1,759,395	$1,794,583	$1,830,474	$1,867,084
Tournaments	$75,114	$75,114	$76,616	$76,616	$76,616	$78,148	$78,148	$78,148
Adult Hockey	$103,654	$104,173	$104,694	$105,217	$105,743	$106,272	$106,803	$107,337
Public Programs and Ice Sales	$374,671	$380,292	$385,996	$391,786	$397,663	$403,628	$409,682	$415,827
Other Building Revenue	$3,122	$3,138	$3,153	$3,169	$3,185	$3,201	$3,217	$3,233
Lease Income	$51,000	$51,255	$51,511	$51,769	$52,028	$52,288	$52,549	$52,812
TOTAL REVENUE	**$2,232,971**	**$2,271,888**	**$2,313,046**	**$2,353,454**	**$2,394,629**	**$2,438,119**	**$2,480,874**	**$2,524,441**
EXPENSES								
Payroll								
Office	$115,529	$118,995	$122,565	$126,242	$130,029	$133,930	$137,948	$142,087
Operations	$212,817	$219,202	$225,778	$232,551	$239,528	$246,714	$254,115	$261,739
Adult Hockey Programs	$23,478	$23,596	$23,714	$23,832	$23,951	$24,071	$24,192	$24,313
Total Payroll	$351,825	$361,793	$372,057	$382,626	$393,509	$404,715	$416,255	$428,138
Other								
Office	$71,465	$72,537	$73,625	$74,729	$75,850	$76,988	$78,143	$79,315
Operations	$387,459	$393,271	$399,170	$405,158	$411,235	$417,404	$423,665	$430,020
Tournaments	$4,788	$4,859	$4,932	$5,006	$5,081	$5,158	$5,235	$5,313
Adult Hockey Programs	$27,036	$27,441	$27,853	$28,271	$28,695	$29,125	$29,562	$30,006
Insurance	$47,148	$47,855	$48,573	$49,302	$50,041	$50,792	$51,554	$52,327
Management Fee	$47,313	$48,022	$48,743	$49,474	$50,216	$50,969	$51,734	$52,510
Property Taxes	$266,854	$276,194	$285,861	$295,866	$306,221	$316,939	$328,032	$339,513
TOTAL EXPENSES	**$1,203,888**	**$1,231,973**	**$1,260,814**	**$1,290,431**	**$1,320,849**	**$1,352,090**	**$1,384,179**	**$1,417,141**
Net Operating Income	$1,029,083	$1,039,915	$1,052,232	$1,063,022	$1,073,781	$1,086,030	$1,096,695	$1,107,300
Land Lease	450,000	450,000	450,000	479,467	378,644	357,301	401,027	409,772
Debt Service	$620,634	$622,500	$618,125	$617,500	$620,469	$617,031	$617,188	$615,781
Debt Service Reserve Fund								
Cash Available after Debt Services	**($41,551)**	**($32,585)**	**($15,893)**	**($33,944)**	**$74,667**	**$111,697**	**$78,481**	**$81,747**
Cash Flow	**($308,641)**	**($341,227)**	**($357,120)**	**($391,064)**	**($316,396)**	**($204,699)**	**($126,218)**	**($44,471)**
Net Operating Income	$1,029,083	$1,039,915	$1,052,232	$1,063,022	$1,073,781	$1,086,030	$1,096,695	$1,107,300
Proposed Land Lease	408,000	415,000	435,000	445,000	430,000	440,000	460,000	463,654
Interest Payment	3,429	3,779	3,929	4,274	3,760	2,933	2,343	1,805
Land Lease Payment inc. Interest	411,429	418,779	438,929	449,274	433,760	442,933	462,343	465,459
Debt Service	$620,634	$622,500	$618,125	$617,500	$620,469	$617,031	$617,188	$615,781
Debt Service Reserve Fund								
Cash Available after Debt Services	**($2,980)**	**($1,364)**	**($4,822)**	**($3,751)**	**$19,552**	**$26,065**	**$17,164**	**$26,060**
Cash Flow	**$20,752**	**$19,387**	**$14,565**	**$10,814**	**$30,366**	**$56,431**	**$73,595**	**$99,656**
Land Lease Change	(42,000)	(35,000)	(15,000)	(34,467)	51,356	82,699	58,973	53,882

Projections 2036 - 2039

	Fiscal 2036	Fiscal 2037	Fiscal 2038	Fiscal 2039			
REVENUE							
Contract Ice Sales	$1,904,426	$1,942,514	$1,981,364	$2,020,992	33,707,032	2%	33,707,032.00
Tournaments	$79,711	$79,711	$79,711	$79,711		1.50%	32,078,788.00
Adult Hockey	$107,874	$108,413	$108,955	$109,500			
Public Programs and Ice Sales	$422,065	$428,396	$434,821	$441,344			1,628,244.00
Other Building Revenue	$3,249	$3,265	$3,282	$3,298			
Lease Income	$53,076	$53,341	$53,608	$53,876			
TOTAL REVENUE	**$2,570,400**	**$2,615,641**	**$2,661,742**	**$2,708,721**			
EXPENSES							
Payroll							
Office	$146,349	$150,740	$155,262	$159,920			
Operations	$269,591	$277,678	$286,009	$294,589			
Adult Hockey Programs	$24,434	$24,556	$24,679	$24,802			
Total Payroll	$440,374	$452,974	$465,950	$479,311			
Other							
Office	$80,504	$81,712	$82,938	$84,182			
Operations	$436,470	$443,017	$449,662	$456,407			
Tournaments	$5,393	$5,474	$5,556	$5,640			
Adult Hockey Programs	$30,456	$30,912	$31,376	$31,847			
Insurance	$53,112	$53,909	$54,717	$55,538			
Management Fee	$53,297	$54,097	$54,908	$55,732			
Property Taxes	$351,396	$363,695	$376,424	$389,599			
TOTAL EXPENSES	**$1,451,003**	**$1,485,790**	**$1,521,532**	**$1,558,256**			
Net Operating Income	$1,119,398	$1,129,850	$1,140,210	$1,150,465			
Land Lease	409,772	409,772	409,772	460,055			
Debt Service	$617,656	$617,656	$830,781	$1,005,469			
Debt Service Reserve Fund				-$633,125			
Cash Available after Debt Services	**$91,970**	**$102,423**	**($100,343)**	**$318,066**			
Cash Flow	**$47,499**	**$149,921**	**$49,579**	**$367,645**			
Net Operating Income	$1,119,398	$1,129,850	$1,140,210	$1,150,465			
Proposed Land Lease	500,000	500,000	409,772	460,055			
Interest Payment	902				37,231		
Land Lease Payment inc. Interest	500,902	500,000	409,772	460,055			
Debt Service	$617,656	$617,656	$830,781	$1,005,469			
Debt Service Reserve Fund				-$633,125			
Cash Available after Debt Services	**$839**	**$12,194**	**($100,343)**	**$318,067**			
Cash Flow	**$100,495**	**$112,689**	**$12,346**	**$330,413**	Borrow	Pay Back	
Land Lease Change	90,228	90,228	0	0	(427,366)	464,598	

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